

Legal Aid Center

Voice For The Weak

District Legal Services Authority

Date: 23-07-2025

Addressed To,

Concerned Police Station,
up

Subject: Complaint under BNS Section –

Respected Sir/Madam,

I, ram, aged 23, residing at up, wish to lodge a complaint regarding the incident described below:

Incident Summary:

My boss still keeps touching me with less and improper legs even after I refuse to say anything. He threatens me that if I complain to anyone, he will fire me from the job. I feel scared of insecurity every day at the office.

BNS Sections:

31 - Honest communication made in good faith, even if it causes offence or emotional harm, is not criminal. This protects whistleblowers, advisors, or medical professionals giving difficult advice.

Honest communication made in good faith, even if it causes offence or emotional harm, is not criminal. This protects whistleblowers, advisors, or medical professionals giving difficult advice.

- Punishment: Not punishable as long as there's no malice or intent to harm; good faith is a valid defence.
- Cognizable: Not cognizable unless accompanied by falsehood, threat, or incitement leading to criminal harm.
- Bailable: Bailability and arrest are not applicable unless the communication violates another specific law (e.g., defamation with malice).
- Category: General Exception

161 - If anyone provokes or encourages an armed force member to assault their senior while the officer is performing duties, it falls under this clause.

If anyone provokes or encourages an armed force member to assault their senior while the officer is performing duties, it falls under this clause.

- Punishment: Punishable with imprisonment up to 7 years and fine because it disrupts command and undermines military discipline.
- Cognizable: Cognizable since the act can escalate quickly into mutiny or insubordination, requiring immediate intervention.
- Bailable: Non-bailable as this offence disturbs the military hierarchy and discipline necessary for combat readiness.
- Category: Offences Relating to Armed Forces

33 - Acts that cause trivial or minimal harm without criminal intent are excused under this clause.

Acts that cause trivial or minimal harm without criminal intent are excused under this clause.

- Punishment: Not punishable because the law disregards negligible harm unless repeated or deliberate.
- Cognizable: Not cognizable because police do not register FIRs or make arrests for trifling injuries or irritations.
- Bailable: Bail is not applicable as criminal action itself is not initiated unless the act is shown to be habitual or done with malice.
- Category: General Exception

Complainant Details:

- Name: ram
- Gender: male
- Age: 23
- Phone: 123456789
- ID Number: 7777
- Email: abcd@gmail.com

Respectfully,

ram

Signature